

3.2.2 Lectures and oral disclosure

In T 877/90 an oral disclosure was regarded as having been made available to the public if, at the relevant date, it was possible for members of the public to gain knowledge of its content and there was no bar of confidentiality restricting their use or dissemination of such knowledge (see also T 838/97).

Where a written disclosure was published which was based on an oral disclosure at a public conference held some years earlier, it could not as a rule be assumed that the written disclosure was identical to the oral disclosure. Additional circumstances had to be put forward and proven to justify that conclusion (T 153/88). In T 86/95, the board assumed that the disclosures were identical since it was highly unlikely that the speaker would have passed over such a salient feature at the conference.

In T 348/94 the board confirmed that a written publication allegedly based on a paper previously read at a public meeting held some time earlier (in this case ten months) could not be assumed to be identical to what was orally disclosed, and might contain additional information. As to the extent of the oral disclosure, the burden of proof remained with the opponent.

In T 1212/97 the opponent had submitted that the invention had been made available to the public at a lecture given some days before the priority date to an audience of some 100 to 200 persons. The question to resolve was whether there was any safe and satisfactory evidence regarding the content of what had been made available to the public at the lecture. The board did not consider **evidence from the lecturer alone** to be satisfactory evidence as to what had been made available to the public at the lecture. Even an audio or video tape recording made of the lecture, unless publicly available, would have to be treated with caution, if several hearings or viewings were necessary to extract all the information. Information appearing in each of the contemporary written notes made at the lecture by at least two members of the audience could usually be regarded as sufficient, whereas information in the notes of a single member of the audience might be inadequate, as it reflected the thoughts of the listener rather than solely the content of the lecture. If the lecturer read his lecture from a typescript or manuscript, or the lecturer wrote up his lecture subsequently, and the lecture was subsequently published in that form as part of the proceedings, then the written version might be taken as some evidence of the contents of the lecture, though with some caution as there would be no guarantee that a script was completely and comprehensibly read, or that a write-up had not been amplified. Most useful would be a handout given to the public at the lecture, containing a summary of the most important parts of the lecture and copies of the slides shown. None of those types of evidence were available in this case (see also T 1057/09, T 428/13, applying the principle, stated that the affidavit of the lecturer was not sufficient to give proof what was actually disclosed orally).

In T 2003/08 of 31. October 2012 the board observed that, in contrast to a written document the contents of which are fixed and can be read again and again, an **oral presentation is ephemeral**. Therefore, the standard of proof for ascertaining the contents of an oral disclosure is high. What has been said, or to use the terms of Art. 54(2) EPC,

what has been "made available to the public" has to be put beyond reasonable doubt. The board noted that in case T 1212/97 the board had expressed the view that "written notes made at the lecture by at least two members of the audience can usually be regarded as sufficient" for that purpose. A fact also indicated by the board was that the amount of evidence necessary to establish the content of an oral presentation beyond reasonable doubt was to be judged on a case-by-case basis, i.e. it depends on the quality of the evidence in each case. In the current board's view, decision T 1212/97 could not be interpreted as setting an absolute standard for the amount of evidence necessary to prove the contents of an oral disclosure. The board considered that there may be circumstances where evidence from the lecturer and only one member of the audience is convincing enough to reach the standard of proof – i.e. beyond reasonable doubt. In the case at issue, however, evidence from the lecturer and a member of the audience, provided by them in the form of both affidavits and oral testimony, was not considered by the board to prove beyond reasonable doubt that the subject-matter of the claim was disclosed during the lecture. Both T 1212/97 and T 2003/08 were cited in T 843/15, in which doubts led the board to conclude that a diagram shown in a conference speaker's slideshow had not been made available to the public, and to distinguish the case from T 335/15.

With respect to oral presentations during a conference, the board in T 667/01 stated that: a declaration of the presenter as to the content of his presentation would not usually be regarded as sufficient since he might have deviated during his presentation from what he intended to present and from what he later remembered as having presented, or he might have presented relevant issues in such a way that the audience was unable to take note of them. If the extent to which the audience understood the presented issues remained uncertain, the established standard of proof typically required a further, independent statement by a person having attended the presentation. Considerable doubt had to remain as to whether the presenter could after 12 years still remember what exactly was presented.

3.2.3 Internet disclosures

a) General

Disclosures on the internet are generally regarded as part of the state of the art within the meaning of Art. 54(2) EPC. Information disclosed on the internet or in online databases is considered to be publicly available as of the date it was publicly posted (Guidelines G-IV, 7.5 – March 2022 version).

The appropriate standard of proof for internet disclosures is the balance of probabilities (T 286/10, T 2227/11).

See also chapter III.G.4.2.4 "Archives and internet publications".

b) Public availability of a document stored on the World Wide Web

Both T 1553/06 and T 2/09 dealt with the question of the public availability of documents saved on the World Wide Web. These two cases concerned test-cases. These two

decisions were taken before T.286/10 (which established the law now applicable with respect to the standard of proof for internet publications).

In T.1553/06 the board developed a test for assessing the public availability of a document stored on the World Wide Web which could be found via a public web search engine on the basis of keywords. In devising this test the board started from its finding that the mere theoretical possibility of having access to a means of disclosure did not make it become available to the public within the meaning of Art. 54(2) EPC 1973. What is required, rather, is a practical possibility of having access, i.e. "direct and unambiguous access" to the means of disclosure for at least one member of the public as set out in G.1/92 (OJ 1993, 277) and T.952/92 (OJ 1995, 755):

If, before the filing or priority date of the patent or patent application, a document stored on the World Wide Web and accessible via a specific URL (1) could be found with the help of a public web search engine by using one or more keywords all related to the essence of the content of that document and (2) remained accessible at that URL for a period of time long enough for a member of the public, i.e. someone under no obligation to keep the content of the document secret, to have direct and unambiguous access to the document, then the document was made available to the public within the meaning of Art. 54(2) EPC 1973.

In T.2/09 the board had doubts as to whether e-mails transmitted over the Internet could be accessed and searched in a way comparable to that of webpages, independent of whether or not access to and disclosure of the content of the e-mail were lawful. The board was rather of the opinion that the differences between webpages and such e-mails make a strong prima facie case against public availability of the latter. The board decided that the content of an e-mail did not become available to the public within the meaning of Art. 54(2) EPC 1973 for the sole reason that the e-mail was transmitted via the internet before the filing date (cf also T.523/14 concerning an advertising newsletter sent by Email – see in this chapter I.C.3.2.1 c)).

In T.2284/13 (Wayback machine as prior art) the board accepted a combination of D5, an incomplete archive version of a web page (on the Wayback Machine web.archive.org; publicly available on 2004 with only small images), with D5', a recent download (2009) of the webpage (with full images) as evidence of a prior art publication. Accordingly, when considering the prior art disclosure of D5, also the expanded figure "the MRTT fuel system" shown in D5' had to be regarded as forming part of that disclosure.

c) Publication date

(i) General

The case law on internet publications is chiefly concerned with dating the information found and the applicable standard of proof. The law on this seems now to have been established by the decisions in T.286/10 and T.2227/11, which were endorsed more recently in T.1711/11, T.353/14, T.545/08, T.1589/13 and T.1066/13. Those decisions also cited the EPO practice set out in its notice concerning internet citations (OJ 2009, 456 to 462) and

the relevant section of the Guidelines. The appropriate standard of proof for internet citations is the **"balance of probabilities"** and not "beyond reasonable doubt".

The conclusion reached in the earlier decision T.1134/06 (followed by T.19/05 and T.1875/06) that the stricter standard of proof "beyond reasonable doubt" had to be applied to internet disclosures has been refuted. Nevertheless, examining a source's reliability as described in that decision has not become entirely obsolete; see, for instance, T.545/08 (points 15 and 18 of the Reasons), T.353/14 (point 2.2.7 of the Reasons) and T.286/10, in which the board found that, the Times Union newspaper's www.jacksonville.com was, prima facie, a known and reliable source of information. While the board in T.2227/11 agreed with the detailed reasoning in T.1134/06 that internet citations of prior art entail a number of difficulties in assessing the authenticity of notably the publication date and the content, there was no reason to impose a stricter standard of proof. These difficulties may require some far-reaching investigations into the matter and the provision of supporting evidence.

Observing that documents published on the internet presented a special problem not encountered with conventional publications, in that changes might be made to them over time that were not readily traceable, the board in T.286/10 endorsed the approach taken in T.2339/09 and T.990/09 and applied the principle of free evaluation of evidence as explained in T.750/94 (OJ 1998, 32).

According to T.545/08, it was correctly stated in the Guidelines (G-IV, 7.5.2–November 2016) with respect to internet disclosures: "The standard for assessing these circumstances is the balance of probabilities. According to this standard, it is not sufficient that the alleged fact (e.g. the publication date) is merely probable; the examining division must be convinced that it is correct."

The burden of proof generally lies with who asserts. In the specific case of internet citations of prior art cited by the EPO, the burden of proof thus lies with the EPO. If the EPO, however, is satisfied that, on the balance of probabilities, an internet citation constitutes prior art, it is then up to the party to prove otherwise (T.2227/11, T.1589/13, see also on burden of proof T.545/08, points 12 and 13 of the Reasons; T.1066/13, "directory listing").

(ii) Illustrative case law

The facts on which any finding of public availability is based must be established with a sufficient degree of certainty in order to convince the competent organ of the EPO in view of all the relevant evidence that they have indeed occurred. This holds true even if the determination is made on the basis of probabilities and not on the basis of absolute certainty ("beyond any reasonable doubt") (T.545/08, point 11 of the Reasons, applied in T.1236/13 in the context of the date of finding a webpage, as displayed in the URL as a date stamp).

It is well-recognised policy of the Internet Archive's Wayback Machine to crawl the internet and archive crawled web pages using the date and time when the web page was crawled as part of the URL. The board did not see how the URL used by the Wayback Machine for

archiving purposes can be considered to be dynamic, as argued by the appellant (applicant), nor did the appellant substantiate this argument any further. The board in T 523/13 was therefore of the view that the date stamp was established with a sufficient degree of certainty (cf. T 545/08, point 11 of the Reasons), unless proven otherwise (ibid., points 12 and 13 of the Reasons). See also T 884/18.

In T 286/10 (www.jacksonville.com / www.archive.org) the board stated that internet publications presented a special problem compared to conventional publications, given the potential for making changes that were not easily traceable. Internet publications did not in principle call for a different standard of proof; any uncertainty linked to such disclosures had to be overcome in a way that ensured a sufficient degree of probability and established a presumption of availability that would convince the judge.

In T 2339/09, according to the search report, D4 was an internet article dated 22 May 2006 and relating to a product catalogue of HBE GmbH, which had been found in an internet archive at www.archive.org on 21 March. The date of the catalogue's online publication was therefore 22 May 2006, i.e. before 17 November 2006, which was the filing date of the application in question. Moreover, the catalogue bore an imprint with the date "11.10.04", which suggested that it had been published "offline" even earlier. In any event, the relevant dates were prior to the filing date and it therefore had to be found that D4 formed part of the state of the art. The board held that the applicant (appellant) bore the burden of presenting the case for and proving the contrary, i.e. that D4 had not been published before the filing date.

In ex parte case T 1961/13 the board noted that it should not have been necessary for the appellants to investigate the relevance of Google's date indications. It was the task of the examiner to make an objective assessment of what a particular date indication was intended to represent and how reliable it was, and to make further investigations if necessary. If it was not understood how a particular date reported by a search engine was generated, it could not be used as evidence of a publication date. A date reported by Google was inherently unsuitable to serve as evidence of the publication date of a document.

The reliability of the information contained in the extracts of Wikipedia cited by the opponent could not be assessed and/or there was no evidence that the content of those documents was made available to the public before the effective date of filing of the patent. Accordingly, and independently from the question whether or not there was any justification to submit those documents on appeal, those documents could not be used to prove common general knowledge available at the effective date of the patent (T 378/15).

In T 1469/10 the board pointed out that the ETSI 3GPP organisation, a reputable standardisation body, had clear and reliable rules for publishing any meeting contributions, in particular as to the documentation of the uploading to the public file server. Therefore, a publication date indicated on the 3GPP document lists ("timestamp") was of high probative value and might serve as prima facie evidence as to the date on which the document was available to the public. Accordingly, the board pointed out that the dates